

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2149

By: Hall

AS INTRODUCED

An Act relating to torts; defining term; creating limitation of action for body dysmorphia affirmation procedures; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 18A of Title 76, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Anorexia affirmation procedures" means the following medical or surgical services performed for the purpose of attempting to affirm the perception of a person diagnosed with anorexia nervosa about his or her body weight, if that perception is inconsistent with the actual, current body weight of the person:

- a. surgical procedures intended to result in weight loss, also known as bariatric surgeries, or
- b. weight-loss drugs, or other drugs to suppress hunger or appetite;

1 2. a. "BIID affirmation procedures" means medical or
2 surgical services performed for the purpose of
3 attempting to affirm the perception of a person
4 diagnosed with Body Integrity Identity Disorder about
5 his or her body, if that perception is inconsistent
6 with the actual, current physique of the person.

7 b. BIID affirmation procedures include surgical
8 procedures that amputate or remove healthy body parts
9 without a clear physical and medical need including,
10 but not limited to, leg, arm, finger, toe, eye, ear,
11 tongue, lip, or nose;

12 3. a. "Gender transition procedures" means the following
13 medical or surgical services performed for the purpose
14 of attempting to affirm the person's perception of his
15 or her gender or biological sex, if that perception is
16 inconsistent with the person's biological sex:

17 (1) surgical procedures that alter or remove physical
18 or anatomical characteristics or features that
19 are typical for the individual's biological sex,
20 or

21 (2) puberty-blocking drugs, cross-sex hormones, or
22 other drugs to suppress or delay normal puberty
23 or to promote the development of feminizing or
24

1 masculinizing features consistent with the
2 opposite biological sex.

3 b. Gender transition procedures do not include:

- 4 (1) behavioral health care services or mental health
5 counseling,
6 (2) medications to treat depression and anxiety,
7 (3) medications prescribed, dispensed, or
8 administered specifically for the purpose of
9 treating precocious puberty or delayed puberty in
10 that patient,
11 (4) services provided to individuals born with
12 ambiguous genitalia, incomplete genitalia, or
13 both male and female anatomy, or biochemically
14 verifiable disorder of sex development (DSD),
15 including but not limited to:
16 (a) 46,XX DSD,
17 (b) 46,XY DSD,
18 (c) sex chromosomes DSDs,
19 (d) XX or XY sex reversal, and
20 (e) ovotesticular disorder,
21 (5) the treatment of any infection, injury, disease,
22 or disorder that has been caused by or
23 exacerbated by the performance of gender
24 transition procedures, whether or not the gender

1 transition procedure was performed in accordance
2 with state and federal law,

3 (6) the treatment of any physical injury or illness
4 that would, as certified by a physician, place
5 the individual in imminent danger of death or
6 impairment of a major bodily function unless such
7 treatment is performed, or

8 (7) the provision of puberty-blocking drugs or cross-
9 sex hormones to a person currently receiving such
10 drugs or hormones as of the effective date of
11 this act for a period of not more than six (6)
12 months solely for the purpose of assisting the
13 person with gradually decreasing and
14 discontinuing use of the drugs or hormones.

15 4. "Body dysmorphia affirmation procedures" means a general
16 term encompassing gender transition procedures, anorexia affirmation
17 procedures, and BIID affirmation procedures;

18 5. "Health care provider" means a physician, physician
19 assistant, Advanced Practice Registered Nurse, or any other person
20 who is licensed, certified, or otherwise authorized by the laws of
21 this state to administer health care in the ordinary course of the
22 practice of his or her profession.

23 B. An action for damages for injury or death against any health
24 care provider or hospital licensed under the laws of this state,

1 whether based in tort, breach of contract or otherwise, arising out
2 of body dysmorphia affirmation procedures, shall be brought within
3 twenty (20) years of the date the plaintiff knew or should have
4 known, through the exercise of reasonable diligence, of the
5 existence of the death, injury, or condition complained of;
6 provided, however, the minority or incompetency when the cause of
7 action arises shall extend said period of limitation.

8 SECTION 2. This act shall become effective November 1, 2025.

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